

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUBC020830: KASHIA NELSON vs FCA US LLC

07/01/2026 in Department 44

Motion to Set Aside/Vacate Judgment

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion:

Plaintiff, Kasha Nelson’s (“Plaintiff”) Motion to Set Aside Judgment under Code of Civil Procedure section 473(b) and Reinstate Case

Tentative Ruling:

Plaintiff’s motion is GRANTED under the mandatory set aside provision of Code of Civil Procedure, section 473, subd. (b). The judgment entered on April 7, 2026, against Defendant FCA US LLC is vacated.

The Court resets trial of the matter for **September 14, 2026, at 1:30 p.m.**

At the hearing on this motion, the Court will inquire of Defendant to reserve a hearing date on Defendant’s motion for attorney fees under section 473, subd. (b).

Plaintiff is to give notice of the Court’s ruling.

Discussion:

Code of Civil Procedure section 473, subdivision (b) provides in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

(emphasis added.)

Section 473, subdivision (b) contains a provision in which the Court has discretion to provide relief, and a mandatory provision.

A. Discretionary Relief under Code of Civil Procedure 473, subdivision (b)

Under the discretionary provision of section 473, “A motion for relief under . . . is addressed to the sound discretion of the trial court and an appellate court will not interfere unless there is a clear showing of an abuse. [Citation]. The statute is remedial and should be liberally applied to carry out the policy of permitting trial on the merits, but the moving party has the burden of showing good cause.” (*Davis v. Thayer* (1980) 113 Cal.App.3d 892, 904.)

“The burden of proof on such a motion is on the moving party who must establish his position by a preponderance of the evidence.” (*Luz v. Lopes* (1960) 55 Cal.2d 54, 62.) As an initial matter, the motion is timely. The motion was filed on April 21, 2026, within 6 months of the judgment being entered on April 7, 2026.

“Excusable neglect” is the most common ground for obtaining discretionary relief from default and essentially requires a showing that moving party has shown a reasonable excuse for the default. (See *Shapiro v. Clark* (2008) 164 Cal.App.4th 1128, 1141-1142.) “Excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances.” [Citation].” (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1419.)

In *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, the court stated: “Neither mistake, inadvertence, or neglect will warrant relief unless upon consideration of all the evidence it is found to be of the excusable variety. [Citation]. To entitle [a party] to relief the acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.’ [Citation].” (*Id.* at p. 58.) In *Jackson, supra*, the Court found that the Bank failed to show excusable neglect since its failure to file an Answer was due to a wrong assumption. (*Ibid.*) Based on the facts presented to the Court, the Court declines to grant discretionary relief under Code of Civil Procedure, section 473(b).

To the extent Plaintiff argues that relief is sought under the discretionary relief provision of section 473, subdivision (b), the Court finds that Mr. Chae’s failure to respond to the Court after being placed on a 48-hour trial recall, Mr. Chae providing his contact information to the Court for the purpose of contacting him, and then failing to respond to the Court notwithstanding the fact that he was otherwise engaged in trial, is inexcusable. (*Protect Agric. Land v. Stanislaus County Local Agency Formation Comm’n* (2014) 223 Cal.App.4th 550, 560 [counsel’s inadequate legal research did not comprise excusable neglect].)

B. Mandatory Relief under Code of Civil Procedure, section 473, subdivision (b)

Under Code of Civil Procedure section 473, the Court must grant relief from default or dismissal caused by an attorney’s mistake, inadvertence, surprise, or neglect, even if the neglect is inexcusable. (*Carmel, Ltd. v. Tavoussi* (2009) 175 Cal.App.4th 393, 401 [“relief is mandatory when a complying affidavit is filed, even if the attorney’s neglect was inexcusable.”], citing *SJP Ltd. Partnership v. City of Los Angeles* (2006) 136 Cal.App.4th 511, 516-517.) In *Carmel*, case the court found the mandatory provision to require relief even where the attorney attempted in his declaration to deflect fault from himself, which had the opposite effect. (*Carmel, supra*, 175 Cal.App.4th at p. 401.) In this case, the requirements of mandatory relief have been met: the application is timely made within 6 months after the default was taken, the application is in proper form, and the cause of the entry of judgment was due to Mr. Chae’s inexcusable neglect in failing to monitor his phone and voice mail, and response to the Court’s message that he was being called in to try this case. Accordingly, Mr. Chae’s sworn affidavit, combined with the Motion as a whole, satisfies the requirement for mandatory relief from default under section 473, subdivision (b).

Plaintiff’s motion to set aside the judgment is GRANTED.